

4	Cerni vs. Karen A. Sunday & Associates, Inc. 2026-01561774	Motion to Strike – Anti SLAPP <i>Matter continued to 11/12/26.</i>
5	Estrada vs. General Motors LLC 2024-01447483	Motion for Attorney Fees Plaintiff Jesus Estrada’s motion for attorney fees and costs is GRANTED in part and DENIED in part. (Code Civ. Proc., §§ 1032, subd. (b) [prevailing party entitlement to costs generally], 1033.5, subd. (a)(10)(B) [recoverable costs may include attorney fees pursuant to statute]; Civ. Code, § 1794, subd. (d) [prevailing party in Song-Beverly action entitled to reasonable fees/costs].) Plaintiffs is awarded attorney fees in the amount of \$15,807.80, which the court finds were reasonably and necessarily incurred. The court finds that the hourly rates claimed by moving party’s attorneys are reasonable and commensurate with market rates in the Orange County area for comparable work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [reasonable hourly rate “is that prevailing in the community for similar work”]; <i>Syers Properties III, Inc. v. Rankin</i> (2014) 226 Cal.App.4th 691, 700 [“determination of the ‘market rate’ is generally based on the rates prevalent in the community where the court is located”].) The court has also somewhat reduced the time claimed by moving party’s attorneys for tasks that appear clerical and/or administrative in nature, entries related to different client, time spent on discovery, and for anticipated time in connection with the instant motion, which appear somewhat excessive. (See <i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095 [court’s broad authority to determine reasonable fees]; <i>Serrano v. Unruh</i> (1982) 32 Cal.3d 621, 635, FN 21 [clerical tasks should generally be considered overhead and included in counsel’s hourly rate]; <i>Save Our Uniquely Rural Community Environment v. County of San Bernardino</i> (2015) 235 Cal.App.4th 1179, 1187 [trial court did not abuse discretion in reducing fees billed at partner rates for “researching and calendaring all deadlines”].) Otherwise, after review of moving parties’ billing records (Ex. A to motion), the court finds the remaining billing entries and time claimed to be reasonably and necessarily incurred. Moving party’s request for a multiplier is DENIED. This is a routine lemon law case, with no unusual facts or novel legal issues requiring exceptional skill. Further, the only evidence provided as to multiplier factors is contingency (Acosta Decl., ¶¶ 11-12); there